Shashi Shekhar vs The State Of Nct Of Delhi on 31 October, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ BAIL APPLN. 2992/2025

SHASHI SHEKHAR
Through: M

versus

THE STATE OF NCT OF DELHI .....Res
Through: Ms. Richa Dhawan, APP for
with SI K.P. Singh, PS Ne
Nagar.
Mr. Paras Dedha and Mr. N
Akhtar, Advs.

CORAM:
HON'BLE MR. JUSTICE VIKAS MAHAJAN
ORDER

% 31.10.2025

1. The present petition has been filed by the petitioner seeking regular bail in connection with FIR No. 101/2025 under Section 316(2)/318(4)/61(2) of BNS and Section 4 of Prize Chits and Money Circulation Scheme (Banning) Act and Section 3/21 of Banning of Unregulated Deposit Scheme Act, 2019, PS: New Ashok Nagar.

2. The case of the prosecution is that a complaint was received at PS New Ashok Nagar, regarding criminal breach of trust and chits (committee) fraud.

3. The complainant Rinki W/o Sajjan Kumar alleged that she met the accused Manju Sharma, who runs chits (committee) in the area of New This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 01/11/2025 at 00:20:00 Ashok Nagar. Manju and his family members namely Basant Kumar (husband), Sagar Goswami, Sawan and Shashi Shekhar (sons of Smt. Manju) run the chits (committee) at House No. C-309 and 380, New Ashok Nagar since 2017.

4. The family of the accused took around Rs.6.5 Lakhs from the complainant Rinki by way of monthly instalment to the extent of Rs.6000/- Rs.7000/- for a period of six years.

5. When the complainant and several other victims asked them for their money, they started another chit (committee) and assured them more profit, however, the family of the accused subsequently refused to pay the amount.

6. Mr. Gaurav Goswami, the learned counsel appearing on behalf of the petitioner submits that co-accused namely, Sawan and Basant have been bound down by the police, whereas co-accused Sagar Goswami is on regular bail.

7. He invites attention of the Court to the chargesheet filed by the police, to contend that role of the petitioner, as well as, that of Sawan and Sagar is identical.

8. He further refers to para 12 of the status report filed by the IO to contend that an amount of Rs.99,999/- has been transferred by the present petitioner to the accounts of two alleged victims. He submits that the said amount was transferred by the petitioner from his account to the accounts of said victims at the instance of his mother. He submits that the petitioner has no connection with the alleged transactions. He contends that no amount was ever received by the petitioner in his account.

9. On a query posed by the Court to the IO, who is present in Court, as to whether any amount has been received by the petitioner in his account, he This is a digitally signed order.

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10. Having regard to the above, as well as, considering the fact that the co-accused namely, Sagar Goswami who is similarly situated as the present petitioner, has already been enlarged on bail, the present bail application of the petitioner is allowed.

11. Accordingly, the petitioner is admitted to regular bail subject to his furnishing a personal bond in the sum of Rs.25,000/- with one surety of the like amount to the satisfaction of the learned Trial Court/JMFC/Duty JM, further subject to the following conditions:

> (a) Petitioner shall appear before the Court as and when the matter is taken up for hearing.
>
> (b) Petitioner shall provide mobile number to the IO concerned which shall be kept in working condition at all times and he shall not change the mobile number without prior intimation to the Investigating Officer concerned.
>
> (c) Petitioner shall not indulge in any criminal activity and shall not communicate with or come in contact with the witnesses or any family members of the witnesses.

12. It is clarified that the observations made herein above are only for the limited purpose of deciding the present bail application and the same shall not be construed as an expression of opinion on merits of the case.

13. The petition is disposed of.

14. Copy of the order be forwarded to the concerned Jail Superintendent for necessary compliance.

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15. Order dasti under signatures of the Court Master.

< VIKAS MAHAJAN, J OCTOBER 31, 2025 N.S. ASWAL This is a digitally signed order.

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